

Rakesh Chandra Mishra v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 18 February 2015 · WRIT - C No. - 7050 of 2015 · **Writ disposed; Executive Engineer, Firozabad directed to process the pending Clause 6.5 bill-rectification application within six weeks.**

HEADNOTE

Where a consumer's application for rectification of electricity bills under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 is pending, the writ court will not examine the veracity of the billing claim and will instead direct the Executive Engineer to process that application within a fixed time.

FACTUAL SUMMARY

Rakesh Chandra Mishra, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., disputed his electricity bills and moved an application for their rectification under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. That application remained pending with the licensee. He then filed Writ-C No. 7050 of 2015 in the Allahabad High Court seeking judicial intervention on the billing dispute. The Executive Engineer at Firozabad was the officer before whom the Code application lay.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending bill-rectification application before Executive Engineer

HOLDING

Where a consumer's application for rectification of electricity bills under Clause 6.5 of the Supply Code, 2005 is pending, the writ court will not examine the veracity of the billing claim and will instead direct the Executive Engineer to process that application within a stipulated time. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VERACITY OF THE PETITIONER'S CLAIM FOR BILL RECTIFICATION UNDER CLAUSE 6.5

The Court expressly declined to examine the merits of the pending application. ¶ 1